

Amendment No. 1 to SB2464

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2464*

House Bill No. 2442

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 7, Part 3, is amended by adding the following language as a new section:

(a) Effective July 1, 2026, for the protection of the people of this state and in furtherance of public safety, there are created one hundred eighteen (118) additional assistant district attorney general positions, thirty-three (33) additional assistant victim witness coordinator positions, twenty-three (23) criminal secretary positions, twelve (12) criminal investigator positions, thirty-two (32) DUI coordinator positions, one (1) administrative assistant - DUI position, one (1) network engineer position, one (1) software engineer position, one (1) computer support specialist position, one (1) human resources specialist position, one (1) fiscal accounting clerk position, ten (10) paralegal positions, twelve (12) legal intern positions, and two (2) public information officer positions.

(b)

(1) At least one (1) new assistant district attorney general in each district must be trained and focus on the prevention and prosecution of violent crime and those crimes related to and stemming from violent crime.

(2) At least one (1) new assistant district attorney general in each district must be trained and focus on the prevention and prosecution of human trafficking offenses and those crimes related to and stemming from human trafficking.

(3) The assistant district attorneys general trained pursuant to subdivision (b)(1) and (2) shall focus on the crimes stated in those subdivisions. This subdivision (b)(3) does not prevent the district attorney general in each such district from assigning additional duties and areas of prosecution to each created assistant district attorney general.

(c) The assistant district attorney general, assistant victim witness coordinator, criminal secretary, DUI coordinator, paralegal, and criminal investigator positions created pursuant to subsection (a) are divided as follows:

(1) Two (2) assistant district attorney general positions, one (1) assistant victim witness coordinator position, one (1) criminal secretary position, and one (1) paralegal position in the first judicial district;

(2) Two (2) assistant district attorney general positions and one (1) criminal secretary position in the second judicial district;

(3) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and one (1) criminal investigator position in the third judicial district;

(4) Two (2) assistant district attorney general positions, one (1) assistant victim witness coordinator position, and one (1) criminal investigator position in the fourth judicial district;

(5) Two (2) assistant district attorney general positions and one (1) criminal secretary position in the fifth judicial district;

(6) Four (4) assistant district attorney general positions and one (1) criminal secretary position in the sixth judicial district;

(7) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position in the seventh judicial district;

(8) Two (2) assistant district attorney general positions, four (4) assistant victim witness coordinator positions, and one (1) criminal investigator position in the eighth judicial district;

(9) Two (2) assistant district attorney general positions, one (1) assistant victim witness coordinator position, one (1) criminal secretary position, and one (1) paralegal position in the ninth judicial district;

(10) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and one (1) assistant victim witness coordinator position in the tenth judicial district;

(11) Three (3) assistant district attorney general positions and two (2) criminal secretary positions in the eleventh judicial district;

(12) Two (2) assistant district attorney general positions, two (2) criminal investigator positions, one (1) criminal secretary position, one (1) assistant victim witness coordinator position, and one (1) paralegal position in the twelfth judicial district;

(13) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position in the thirteenth judicial district;

(14) Two (2) assistant district attorney general positions and one (1) criminal secretary position in the fourteenth judicial district;

(15) Two (2) assistant district attorney general positions, one (1) assistant victim witness coordinator position, two (2) criminal investigator positions, and one (1) paralegal position in the fifteenth judicial district;

(16) Three (3) assistant district attorney general positions, one (1) assistant victim witness coordinator position, one (1) criminal secretary position, and one (1) criminal investigator position in the sixteenth judicial district;

(17) Two (2) assistant district attorney general positions and one (1) criminal secretary position in the seventeenth judicial district;

(18) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position in the eighteenth judicial district;

(19) Three (3) assistant district attorney general positions, one (1) assistant victim witness coordinator position, and one (1) criminal investigator position for the nineteenth judicial district;

(20) Five (5) assistant district attorney general positions, three (3) criminal secretary positions, two (2) criminal investigator positions, and one (1) paralegal position for the twentieth judicial district;

(21) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and three (3) assistant victim witness coordinator positions for the twenty-first judicial district;

(22) Two (2) assistant district attorney general positions and one (1) paralegal position for the twenty-second judicial district;

(23) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and one (1) assistant victim witness coordinator position for the twenty-third judicial district;

(24) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and one (1) criminal investigator position for the twenty-fourth judicial district;

(25) Two (2) assistant district attorney general positions, one (1) criminal secretary position, one (1) assistant victim witness coordinator position, and one (1) paralegal position for the twenty-fifth judicial district;

(26) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position for the twenty-sixth judicial district;

(27) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position for the twenty-seventh judicial district;

(28) Two (2) assistant district attorney general positions and one (1) assistant victim witness coordinator position for the twenty-eighth judicial district;

(29) Two (2) assistant district attorney general positions, one (1) assistant victim witness coordinator position, and one (1) paralegal position for the twenty-ninth judicial district;

(30) Five (5) assistant district attorney general positions, one (1) assistant victim witness coordinator position, one (1) criminal secretary position, and one (1) paralegal position for the thirtieth judicial district;

(31) Two (2) assistant district attorney general positions and one (1) criminal secretary position for the thirty-first judicial district;

(32) Two (2) assistant district attorney general positions, one (1) criminal secretary position, and one (1) paralegal position for the thirty-second judicial district;

(33) One (1) DUI coordinator position in each judicial district;

(34) Eight (8) victim witness coordinator positions to be divided amongst the districts; and

(35) Forty-three (43) of the assistant district attorney general positions to be divided amongst the districts with at least one (1) position to each district.

The assistant district attorneys general assigned pursuant to this subdivision

(c)(35) shall prosecute driving under the influence cases; provided, that this subdivision (c)(35) does not limit the ability of the assistant district attorneys general to prosecute other cases.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.